Re: Notice of Investigative leave - Acknowledgment of Investigative Leave Notice – Dated July 14, 2025 – With Rebuttal

From Kevin Turnage <kdturnage@protonmail.com>

To McCabe, Endreya (IHS/PHX)<Endreya.McCabe@ihs.gov>

CC Birdshead, Dora (IHS/HQ)<dora.birdshead@ihs.gov>, Drake, Emily<EDrake@osc.gov>, Ward Lund, Debra L. (IHS/PHX)<Debra.Wardlund@ihs.gov>, Ty.Reidhead@ihs.gov, Kathy.Dill@ihs.gov, Daniel.Frye@ihs.gov

Date Tuesday, August 26th, 2025 at 11:35 AM

Dear Dr. McCabe,

I am writing because my period of investigative leave, as stipulated in your memorandum dated July 14, 2025, expired today, August 26, 2025. I have received no guidance regarding my duty status.

Your memorandum correctly stated that upon the expiration of this leave, the agency was legally required to take one of the following six actions pursuant to 5 U.S.C. § 6329b(b)(5):

1. return me to regular duty status;
2. reassign me to duties;
3. allow me to take other leave;
4. place me in an absent without leave (AWOL) status;
5. propose or initiate an adverse action; or
6. extend the period of investigative leave.

The agency has failed to take any of these actions. Furthermore, several of these options are legally or factually unavailable:

- **Reassignment (Option 2):** This is not a permissible option, as my current position was established as part of a formal reasonable accommodation. Unilaterally reassigning me would violate the Rehabilitation Act.
- **Other Leave (Option 3):** This is not a choice, as I am ready, willing, and able to work and have no need to take personal leave.
- **AWOL (Option 4):** This is legally impossible, as you have not rescinded your explicit directive that I am "not to... appear at any Indian Health Service (IHS) location for any reason, without explicit and advance permission." I cannot be absent from a worksite that I am forbidden from entering.

As of the end of business today, my authorized, paid leave is over. By failing to provide any legally permissible instructions and simultaneously maintaining the order that I remain away from the workplace, the agency has effectively placed me in an involuntary, unpaid status.

This action constitutes a **constructive suspension**.

I demand immediate written instruction to remedy this improper action and to clarify my official, paid duty status.

Sincerely,

Kevin D. Turnage

Hon. Kevin Dean Turnage, MSN Ed, RN
Tennessee Colonel Aide de Camp
NHDP-BC, NPD-BC, AMB-BC, NE-BC
Certified Federal Whistleblower
kdturnage@protonmail.com *(Encrypted Email)*
901-220-8664
PGP Fingerprint: `CDB6 543B 51C2 056B 5333 CECE 4C44 C5E3 7A30 4FF6`

Sent with Proton Mail secure email.

On Monday, July 14th, 2025 at 5:55 PM, Kevin Turnage <kdturnage@protonmail.com> wrote:

> **Dear Dr. McCabe,**
>
> Attached please find my signed acknowledgment of the Investigative Leave Notice issued on **July 14, 2025**.
>
> **My signature acknowledges receipt only and does not indicate agreement with, or acceptance of, the content, authority, or legal implications of the notice.**
>
> Pursuant to **5 U.S.C. § 7513(b)**, I respectfully submit the attached **formal rebuttal** for inclusion in the **official agency record**. This rebuttal is also submitted in support of my pending appeal before the **Merit Systems Protection Board** (MSPB Docket No. **DE-0752-25-1215-I-1**) and is associated with my ongoing whistleblower retaliation complaint before the **U.S. Office of Special Counsel** (OSC File No. **MA-25-004957**).
>
> As detailed in the rebuttal, I have made multiple protected disclosures under **5 U.S.C. § 2302(b)(8)** and **(b)(9)** since **March 2023** to the **U.S. Office of Special Counsel**, **HHS OIG**, **CMS**, and members of Congress. These disclosures raised serious compliance, policy integrity, and statutory enforcement concerns.
>
> The timing and nature of my placement on investigative leave—shortly after formal protected disclosures made in **June 2025**—raise significant due process concerns and appear to implicate potential prohibited personnel practices. I do not assert conclusions, but raise these issues for appropriate legal and procedural evaluation by MSPB, OSC, and relevant oversight bodies.
>
> I respectfully request written confirmation that this rebuttal has been incorporated into the **official agency record** in accordance with governing personnel procedures and will be reviewed prior to any further personnel action.
>
> Please advise if additional information is needed.
>
> Respectfully,
> ***/s/* Kevin D. Turnage**
> Kevin D. Turnage, MSN Ed, RN
> Policy and Procedures Officer, GS-0610-12
> Phoenix Indian Medical Center
> kdturnage@protonmail.com | (901) 220-8664
> **Date:** July 14, 2025
>
> On Monday, July 14th, 2025 at 10:17 AM, McCabe, Endreya (IHS/PHX) <Endreya.McCabe@ihs.gov> wrote:

Good morning,

I have attached the notice of investigative leave. Please reach out to me or Dora Birdshead with any questions or concerns. Thank you.

Respectfully,

Dr. Endreya M. McCabe BS, MT, MPH, PhD
Director of Quality and Performance Improvement
Office of Quality Management
office: 602-248-4191
cell phone: 480-971-5991
endreya.mccabe@ihs.gov